

STATE OF NEW YORK

1349--B

Cal. No. 936

2025-2026 Regular Sessions

IN SENATE

January 9, 2025

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to requiring school districts to provide information regarding water safety and swimming certification to certain parents or students upon enrollment; and to amend the public health law, in relation to promoting public awareness of the dangers of fatal and non-fatal drowning

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 926 to
2 read as follows:

3 § 926. Water safety and swimming certification. 1. Beginning with the
4 two thousand twenty-six--two thousand twenty-seven school year, each
5 school district shall provide, to a parent or guardian who initially
6 enrolls their child in the school, information on the important role
7 water safety education courses and swimming lessons play in saving
8 lives. Such information, which shall be provided by the department of
9 health on its public website pursuant to paragraph (t) of subdivision
10 one of section two hundred seven of the public health law, must be
11 provided electronically or in hard copy and must include local options
12 for age-appropriate water safety courses and swimming lessons that
13 result in a certificate indicating successful completion, including
14 courses and lessons offered for free or at a reduced price. To satisfy
15 this requirement, the school district may either: (a) provide a list of
16 options deemed geographically appropriate by the school district, or (b)

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 provide a website address to an online database of options searchable by
2 zip code as approved for such purpose by the department of health pursu-
3 ant to paragraph (t) of subdivision one of section two hundred seven of
4 the public health law. If the student is eighteen years of age or older,
5 or is under the age of twenty-one and is enrolling in adult education
6 classes, the information must be provided to the student.

7 2. For the purposes of this subdivision, the term "water safety" shall
8 mean age-appropriate education intended to promote safety in, on, and
9 around bodies of water and reduce the risk of injury, including fatal or
10 non-fatal drowning.

11 § 2. Paragraph (s) of subdivision 1 of section 207 of the public
12 health law, as added by chapter 294 of the laws of 2024, is amended to
13 read as follows:

14 ~~[(s)]~~ (t) Promoting public awareness of the dangers of fatal and non-
15 fatal drowning, including but not limited to the unique risk factors and
16 exposures associated with infant and early drowning, childhood and teen-
17 age drowning and adult drowning, the disparate risk of drowning in
18 disadvantaged communities identified pursuant to section 75-0111 of the
19 environmental conservation law and with individuals with a mental disa-
20 bility as defined by subdivision three of section 1.03 of the mental
21 hygiene law, and methods to reduce the risks of drowning, including but
22 not limited to water safety instruction, swim lessons, and awareness of
23 water based risks. Such information shall include access to an online
24 database, searchable by zip code, of options for age-appropriate water
25 safety courses and swimming lessons that result in a certificate indi-
26 cating successful completion, including courses and lessons offered for
27 free or at a reduced price.

28 § 3. This act shall take effect July 1, 2026; provided that the amend-
29 ments to subdivision 1 of section 207 of the public health law made by
30 section two of this act shall take effect on the same date and in the
31 same manner as section 1 of chapter 294 of the laws of 2024, takes
32 effect.